



DECISION

Complaint No. : POS/4893/2023/56/KHS

Name and address of the complainant : Mr. Sabz Ali Khan, R/o H. No. 228, Rasham Gali, Seena Cosmetics Store Near Subhan Allah Masjid, Massan Road, Keamari, Karachi.

Name of the Agency Complained against : School Education / Deputy Commissioner

Name & Designation of Investigating Officer : Syed Maqsood Haider, Director, Regional Office South, Karachi.

Vetted by : Ms. Rehana G. Ali Memon

Subject : Advisor-II

DELAY IN APPOINTMENT OF THE COMPLAINANT AS NAIB QASID UNDER DIFFERENTLY-ABLED PERSONS QUOTA DESPITE COMPLETION OF FORMALITIES.

THE COMPLAINT:

Mr. Sabz Ali Khan filed an online complaint on 04-07-2023, stating that he had applied for the post of Naib Qasid under the differently-abled quota in the School Education Department on 22-05-2022. He was later called for an interview at the office of the District Education Officer, Keamari, but upon arrival, he was informed that the interviews had been canceled and would be rescheduled. No further communication was provided, while several other candidates were allegedly appointed on recommendation. Despite his disability, he made repeated efforts and visited offices without progress. He solicited the intervention of this office to ensure issuance of his appointment letter under the disabled quota.

PROCEEDINGS:

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response, the DEO submitted his report dated 04-06-2024 stating that his office had requested the report of Disability Recommendation Committee (DRC) from the Deputy Commissioner, Keamari, through a letter dated 30-05-2024. The delay in the complainant's appointment was due to non-receipt of the DRC recommendation. Later on a list of seven recommended candidates from District Keamari, received on 25-11-2022, did not include the complainant.
3. The DEO submitted a subsequent report dated 21-10-2024, reiterating that no appointment letter can be issued without the DRC's recommendation and Mr. Sabz Ali's name was not included by the DRC as mentioned above. Further no vacancy currently exists under the disabled quota.
4. He informed on 18.07.2025 that under the 5% disabled quota, five posts were available out of 97 sanctioned positions (BPS-01 to BPS-04) in 2025 and the DRC has finalized the appointments on 18-11-2024, but the complainant's name was not included. The DEO confirmed that no vacancy currently exists under the quota but stated the complainant may be considered in the future as per availability of posts.
5. The Deputy Commissioner, Keamari, appeared in person before the Hon'ble Ombudsman Sindh on 17-11-2025. He apologized for earlier non-compliance with notices, submitting his detailed report dated 14-11-2025 along with supporting documents, and explained that the DRC recruitment process was conducted in compliance with the Hon'ble High Court's directions and interviews were held on 28-10-2024. Twenty four

candidates appeared including various petitioners and other differently-abled applicant, but the complainant did not attend. Twenty-one candidates were recommended for appointment, and all quota vacancies were duly filled. He assured that the complainant may be considered in the next recruitment cycle under the differently-abled quota.

FINDINGS:

6. In view of the facts stated above, I conclude that:

- i. The recruitment process under the 5% Differently-Abled Persons quota was conducted lawfully and in compliance with the directions of the Hon'ble High Court and prescribed procedures.
- ii. The complainant, Mr. Sabz Ali Khan, did not appear before the DRC on the scheduled date; therefore, his name was not included in the recommended list.
- iii. All quota vacancies for the relevant recruitment cycle were duly filled, as confirmed by the DEO and Deputy Commissioner.
- iv. No maladministration is attributable to the Education Department or District Administration.
- v. The Deputy Commissioner has assured that the complainant's candidature will be considered in the next recruitment cycle, subject to availability of posts under the Differently-Abled Persons quota.

DECISION:

7. In view of the above, I, in exercise of the powers vested in me under section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991 (amended upto date), hereby dispose of the complaint with directions to the Deputy Commissioner, Keamari, Karachi and District Education Officer (Primary), Keamari to consider the application of the complainant in next DRC Meeting for Differently-abled Persons quota and ensure that the complainant is informed well in time about the time and place of test / interview.

Given under my hand and seal of office.



Sd /-
MUHAMMAD SOHAIL RAJPUT
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh

25th
Karachi, dated November, 2025